

**IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR
JUDICIAL DEPARTMENT**

Writ Petition No.5653 of 2022

Ms. Farzana Liaqat

Versus

**Program Director, Integrated Reproductive Maternal
New Born & Child Health Program, Punjab etc.**

JUDGMENT

Date of Hearing:-	13.09.2022
Petitioner by:-	Mr. Jamshaid Akhtar Khokhar, Advocate.
Respondent No.1 by:-	Makhdoom Kalim Ullah Hashmi, Assistant Advocate General.
Respondent No.2 by:	Mr. Muhammad Ibrahim and Amir Mahmood, Law Officers .

Ch. Muhammad Iqbal, J:- Brief facts of the case, as contended by the petitioner in this petition, are that the petitioner was appointed as Lady Health Visitor on contract basis in the year 2018 for a period of one-year w.e.f. 17.01.2018 which contract period has been extending from time to time and she is still in service. The Chief Executive Officer, District Health Authority, Bahawalpur, vide impugned order dated 22.07.2022, transferred the petitioner on administrative ground from Basic Health Unit Jamal Channer, Tehsil & District Bahawalpur to Basic Health Unit Rasoolpur, Tehsil Ahmedpur East, District Bahawalpur against the vacant post. Hence, this writ petition.

2. I have heard the arguments advanced by the learned counsels for the parties at full length and gone through the record with their able assistance.

3. The matter which requires adjudication in this case can be summarized in the following question:

Whether an employer / competent authority has the power to transfer a contract employee from one place of posting to another?

4. Learned counsel for the petitioner has mainly relied upon the Clause 10 of the terms and conditions of the appointment letter dated 17.01.2018 of the petitioner and argued that the post of the petitioner is non-transferable, as such the impugned transfer order is violative of the Terms & Conditions of the Contract. The perusal of Clause 10 of the Contract does not support the stance of the learned counsel rather it commands that the employee / petitioner shall not, under any circumstances, claim any right for transfer from one place to another of his/her choice. For ready reference, aforesaid Clause of appointment letter dated 17.01.2018 is reproduced as under:-

“10. **TRANSFER/ POSTING.**

Your appointment will be post specific and non-transferable. You shall not under any circumstances claim any right for transfer from one place to another.”

(emphasis supplied)

The plain reading of the above stipulation evinces that only the employee is placed under stringent embargo to claim transfer whereas the above contractual term in any stretch of imagination does not oust the administrative power of the authority to transfer its employee.

The petitioner has failed to point out any term / condition of the contract prohibiting the respondent-authority to transfer her from one place to another, as such the Clause 10 of the letter relied upon by the learned counsel, does not make it an inviolable rule that the petitioner cannot be transferred from one place to another. The employment carries with it an obligation to serve the employer at whichever place the employee is required to be posted in accordance with the exigencies of

service or administrative requirements. It is for the administration to take appropriate decision and such decision shall stand unless it is vitiated either by mala fide or by extraneous consideration without any factual background or foundation. The petitioner failed to establish that she was transferred by the respondent-authority with mala fide or without any administrative requirement. The employees cannot choose their place of posting because the employer knows where and how best the services of the employee are to be utilized. The impugned transfer order also does not depict any impact on the designation or salary of the petitioner nor any such like effect has been alleged by the petitioner.

5. Further, transfer of any employee is an incidence of service and no employee can claim as a matter of right to remain posted at a place of his choice for an indefinite period. The employer / competent authority can transfer an employee from one place to another on the administrative ground and such order does not violate any right of the employee. The concerned department is the best authority to choose the place of posting of an employee for smooth running of the official business and the Courts are not expected to interfere therewith by probing and adjudicating the fate of transfer orders of the employees. It is settled law that the transfer and posting of an employee at a particular place is not a vested right rather the concerned competent authority has powers to utilize the services of the employee at suitable place of posting to get maximum benefits of his capabilities. Reliance in this regard is placed on a judgment cited as Muhammad Mansha Javed Vs. Secretary to Government of Punjab and others (1998 SCMR 263), wherein the Hon'ble Supreme Court of Pakistan has held as under:

“3....It is for the department to decide fairly and justly who should be posted as Chief Officer, Zila Council, Narowal. Neither the petitioner nor respondent No.2 has any vested right to remain or to get posted at the above place.”

In a case cited as Tahir Mehmood Abbasi and another Vs. District Coordination Officer, Rawalpindi and another [2009 PLC (C.S.) 320] the Hon'ble Apex Court has held as under:

“6... It is prerogative of the respondents-authority to utilize services of the petitioners at a place and against a position of its discretion keeping in view the administrative grounds confronting the authority.”

Further reliance is placed on a case cited as Asadullah memon Vs. Pakistan Electric Power Company (PEPCO) and others [2010 PLC (C.S.) 662] wherein it has held as under:

“... It is for the administration of a department / company as to where an employee is to be posted to get maximum benefits of his capabilities, therefore, the petitioner cannot claim posting of his choice while remaining in service.”

Reliance is also placed on cases cited as Dr. Imtiaz Ellahi Piracha Vs. Government of Punjab and others [2004 PLC (C.S.) 705], Muhammad Alam Jan Vs. Government of N.W.F.P through Secretary, Home and Tribal Affairs, Peshawar and 3 others (2005 SCMR 442).

The Supreme Court of India has also taken this view in an order dated 06.09.2021 passed in Petition for Special Leave to Appeal No.36717/2017 titled Namrata Verma Vs. The State of Uttar Pradesh and Ors by observing as under:

“It is not for the employee to insist to transfer him/her and/or not to transfer him/her at a particular place. It is for the employer to transfer an employee considering the requirement.”

Reliance is also placed on judgments of Indian Jurisdiction i.e. State of Madhya Pradesh & Ors. Vs. Sri S. S. Kourav & Ors (1995 AIR 1056), M/s. Pearlite Liners Pvt. Ltd. Vs. manorama Sirsi (AIR 2004 SC 1373), Rekha Chandra Vs. National Bank for Agriculture and Rural Development [2013 (1) AD (Delhi) 764], order dated 16.12.2021 passed in Writ Petition No.2886/2019 titled Naresh Kumar Vs. Scholastic India Pvt.

Ltd. (High Court of Delhi) and order dated 30.09.2021 passed in Writ Petition No.441 of 2021 titled Naresh Kumar Vs. Scholastic India Pvt. Ltd. (High Court of Uttarakhand at Nainital).

6. Even otherwise, admittedly the petitioner is a contract employee and she is aggrieved of her transfer order which falls within the terms of the contract employment and such employee is debarred to agitate his/her grievance relating to the contract employment through constitutional petition. Even otherwise, if any violation of stipulation of contract has been made, the petitioner can claim damages if any, whereas the writ petition is not maintainable against the violation of any contractual obligation. Reliance is placed on the cases titled as Qazi Munir Ahmed Vs Rawalpindi Medical College and Allied Hospital through Principal & Others (2019 SCMR 648), relevant portion whereof is reproduced as under:-

“12. We have also noticed that the dispute between the parties related to contract employment. This Court has in various pronouncements settled the law that a contract employee is debarred from approaching the High Court in its constitutional jurisdiction. The only remedy available to a contract employee is to file a suit for damages alleging breach of contract or failure to extend the contract. Reference in this behalf may be made to Federation of Pakistan v. Muhammad Azam Chattha (2013 SCMR 120), where it has been held that it is a cardinal principle of law that a contract employee cannot press for reinstatement to serve for the left over period and can at the best claim damages to the extent of unexpired period of his service. Therefore, it was correctly held that the petitioner approached the wrong forum in the first place and the learned Single Judge had exceeded his jurisdiction by interfering in a purely contractual matter.”

Reliance is also placed on cases cited as Government of Khyber Pakhtunkhwa through Secretary Health, Peshawar and others Vs. Jawad Ali and others (2021 SCMR 185) and Vice Chancellor, Bacha Khan University Charsadda, Khyber

Pakhtunkhwa and others Vs. Tanveer Ahmad and others (2021 SCMR 1995).

7. Further, there is no bar on the respondent-department to transfer the petitioner from one place to another, as per terms and conditions of appointment letter of the petitioner, the respondent-authority is competent to transfer the petitioner for certain administrative reasons. In view of above, it can conveniently be held that the employer / competent authority has the power to transfer an employee from one place to another.

8. In view of above, this writ petition is misconceived, resultantly, the same is hereby **dismissed** being devoid of any merits.

(CH. MUHAMMAD IQBAL)
JUDGE

Approved for reporting.

JUDGE

Abdul Hafeez